

26SMCV02840 26SMCV02840

County: los-angeles

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Department: 205

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Case Number: 26SMCV02840 Hearing Date: July 10, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly Hills Courthouse | Department 205

MAURISSA D. GEORGE,

Plaintiff,

v.

COMMUNITY CORPORATION OF SANTA MONICA c/o TARA

HENDERSON-BARAUSKAS; JANE DOE a/k/a SAVANNAH; CHRISTIAN LEGUIZAMON; and DOES

1-20, inclusive,

Defendants.

Case No.:

26SMCV02840

Hearing Date: 07/10/26

Trial Date:

N/A

[TENTATIVE] RULING RE:

MOTION TO CHANGE VENUE

Background

On May 26, 2026, Plaintiff Maurissa D. George filed a complaint against Defendants Community Corporation of Santa Monica c/o Tara Henderson-Barauskas, Jane Doe a/k/a Savannah, Christian Leguizamon, and Does 1 to 20, inclusive, alleging fifteen causes of action: (1) Bane Act violation; (2) intentional emotional distress; (3) dependent adult civil act violation; (4) conversion Mr. Finch; (5) tortious injury to pet Mr. Finch; (6) exemplary damages; (7) special value; (8) negligence; (9) false light; (10) intrusion into private affairs; (11) public disclosure of private facts; (12) false imprisonment; (13) breach of covenant of quiet enjoyment; (14) Santa Monica Tenant Harassment violation; and (15) FEHA violation.

Plaintiff's allegations stem from an alleged unlawful detainer summons packet filed on January 16, 2026 by Defendant Community Corporation of Santa Monica, and personally served to Plaintiff on January 28. On February 10, 2026, Plaintiff alleges that Defendants called police officer who placed Plaintiff on a 5150-hold based on false statements. Plaintiff is an individual with a mental disability and has been receiving mental health and therapeutic services from The People Concerned since 2021.

On May 27, 2026, Plaintiff filed the operative motion for change of venue. No opposition has been filed.

On June 3, 2026, Plaintiff filed an amended complaint alleging the same causes of action but adding Defendants The People Concern c/o John Maceri, Jonathan Campbell, and naming Jane Does as Savanna Bachelder-Arul.

Plaintiff also filed notices of related cases on May 26 and June 8, 2026, stating Community Corporation of Santa Monica v. Maurissa D. George (26SMUD00113) filed on January 16, 2026, Maurissa D. George v. Community Corporation of Santa Monica, et al. (25SMCV06443) filed on December 15, 2025, and Maurissa D. George v. Community Corporation of Santa Monica, et al. (25SMCV06475) filed on

December 16, 2025 all share common parties, involve claims against, title to, possession of, or damages to the same property, share a common questions of fact and/or law, and arise from the same or substantially identical transactions, incidents, or events as the current case. The Court reviewed the notices, but no action was required. Those other cases were filed before this case.

Legal Standard

On timely motion, the court must order a transfer of an action “when the court designated in the complaint is not the proper court.” (Code Civ. Proc., §§ 397, subd. (a), 396b.) A motion to transfer venue on grounds the designated court is not proper must be filed and served before or at the time of filing an answer, demurrer, or motion to strike. (Code Civ. Proc., § 396b.) “Venue is determined based on the complaint on file at the time the motion to change venue is made.” (Brown v. Superior Court (1984) 37 Cal.3d 477, 482; Haurat v. Superior Court for Los Angeles County (1966) 241 Cal. App.2d 330, 337 [“Venue is determined on the basis of the complaint as it stands at the time the motion to change is made, and the plaintiff is not permitted to make a subsequent election of theories by proposed amendments thereto.”].)

A plaintiff's choice of venue is “presumptively correct.” (Battaglia Enterprises, Inc. v. Sup. Ct. (2013) 215 Cal.App.4th 309, 314.) Thus, “[t]he burden rests on the party seeking a change of venue to defeat the plaintiff's presumptively correct choice of court.” (Id.) Generally, when venue is proper in more than one county, a plaintiff has the choice of where to file the action from among the available options. (Id.)

As a general rule, “the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” (Code Civ. Proc., § 395, subd. (a).) Section 395, subdivision (a) states that “[e]xcept as otherwise provided by law and subject to the power of the court to transfer... the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” (Code Civ. Proc., § 395, subd. (a) (emphasis added); see also, Monogram Co.

v. Kingsley (1951) 38 Cal.2d 28, 29-30 (explaining a defendant is not entitled to have an action removed to the county of his residence unless it appears that none of the other defendants are residents of the county where the action is brought).)

However, this “general rule” of venue has effect only when no other venue provision applies. When there is a more specific venue statute, the general rule is subordinated. (Brown v. Superior Court, 37 Cal.3d at 483 [venue provisions of FEHA controlled over general venue provisions of Cal. Civ. Proc. 395 when causes of action under the act were brought along with other non-FEHA causes of action if the claims arose from the same facts].)

Code of Civil

Procedure section 397, subdivision (c) provides that “the court may, on motion, change the place of trial . . . [w]hen the convenience of witnesses and the ends of justice would be promoted by the change.” “A motion for a change of venue, grounded upon the convenience of witnesses, rests in the discretion of the trial court.” (Blossom v. Waller (1916) 30 Cal.App. 439, 441.) The party moving to change an action’s venue has the burden of proving that both convenience of witnesses and ends of justice will be thereby promoted. (Prewitt v. Prewitt (1954) 128 Cal.App2d 344, 346.) The motion must be accompanied by declarations that establish a substantial factual basis for granting the motion based on “convenience of witnesses and the ends of justice.” (Juneau v. Juneau (1941) 45 Cal.App.2d 14, 16.)

In determining whether the transfer would promote the convenience of the witnesses, the Court is to consider only the convenience of non-party witnesses, and not the convenience of party witnesses and party-affiliated witnesses. (Rios v. Lacey Trucking Co. (1954) 123 Cal.App.2d 865, 868-869; Chaffin Cost. Co. v. Maleville Bros. (1957) 155 Cal.App.3d 660, 663 [convenience of party’s employee-witnesses not to be considered].) There are exceptions to this rule. (See Rios, supra, 123 Cal.App.2d at p. 869.) However, if a party intends to call an opposing party’s employees as adverse witnesses, the Court may take the convenience of those witnesses into account. (J.C. Millett Co. v. Latchford-Marble Glass

Co. (1959) 167 Cal.App.2d 218, 227.)

Analysis

Plaintiff

moves for change of venue and/or transfer of this case from the Beverly Hills Courthouse, Department 205 to the Santa Monica Courthouse. Both courts are located within the West District of the Superior Court of Los Angeles County.

Plaintiff's

motion lacks any statement of authority for the requested relief and is unsupported by any evidence, and may be denied for those reasons. Nevertheless, the Court supplies the following analysis of Plaintiff's arguments.

Plaintiff

argues that the Santa Monica Courthouse is "more conveniently located for involved parties and potential witnesses...because it is more centrally located and more accessible from LAX" and is "more handicapped friendly and accessible." (Mot., at pg. 2.) Plaintiff states that the residence and business offices of parties and potential witnesses are location within Santa Monica City and is the location of the alleged incident. (Id.)

The

Court finds that granting the motion would not promote the ends of justice pursuant to Code of Civil Procedure section 397. Plaintiff has failed to identify any non-party witnesses who will be inconvenienced. Plaintiff merely asserts that it is more convenient for "potential witnesses." Without knowing the number of non-party witnesses, their locations, their schedules, the nature of their testimony, and whether they are essential to this case, the Court cannot adequately assess the extent of any inconvenience to the witnesses. Plaintiff does not include declarations with her motion speaking to the convenience of witnesses.

Accordingly,

the motion for change of venue and/or transfer of case is DENIED.

Conclusion

The Court DENIES Plaintiff's motion

for change of venue and/or transfer of case to Santa Monica Courthouse.

Dated: July 10, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court